

KEY MOMENT

THE 1866 CIVIL RIGHTS ACT

The act was guaranteed to widen the rift between the Radical Republicans in Congress and President Johnson. "In every State and Territory in the United States" it granted the same rights enjoyed by white citizens to all males, "without distinction of race or color, or previous condition of slavery or involuntary servitude." In March 1866, Johnson vetoed the bill, declaring that "the distinction of race and color is by this bill made to operate in favor of the colored and against the white race." The veto was overturned by a two-thirds majority in Congress, and passed into law in April.

Military districts

On March 2, 1867, Congress passed the First Reconstruction Act. This divided the South into five military districts, each under the command of a U.S. general. One of the tasks of the governors was to ensure voting rights for Black people in the former Confederate states. To guarantee Black voting rights, Congress also authored the Fifteenth Amendment, which stated that the right to vote could not be denied on account of race. Congress also outlined its terms for readmitting Southern states. New state constitutions were required that affirmed Black voting rights and ratified the Fourteenth Amendment. Until this was done, the Southern states would stay under occupation and Southern legislators would not be allowed entry to Congress.